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Democrat behind California rent cap law to leave Assembly for San Francisco attorney's office

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The California Democrat who wrote a statewide rent cap and championed tenant protections during the coronavirus pandemic is leaving the Assembly to become San Francisco's city attorney.

San Francisco Mayor London Breed picked Assemblyman David Chiu, chairman of the Housing and Community Development Committee, for the post on Wednesday. It was open after former City Attorney Dennis Herrera was selected to head the San Francisco Public Utilities Commission earlier this year.

Chiu, 51, was first elected to the state Assembly in 2014, and has advocated for a series of tenant protection and affordable housing bills during his tenure. He wrote a 2019 rent cap law that limits how much landlords can raise housing prices and took charge of negotiations over an eviction moratorium during the COVID-19 pandemic.

This year, Chiu also worked on changing the Employment Development Department after a massive fraud scandal rocked the antiquated state agency, and wrote an offshore wind energy bill and legislation sponsored by Planned Parenthood. He's also advocated for stronger protections for the Asian American and Pacific Islander community following a wave of recent racist attacks.

A Boston native and son of Chinese immigrants, Chiu graduated from Harvard with undergraduate, law and master's in public policy degrees, according to his Assembly biography.

Chiu will be the first Asian American to serve as San Francisco's city attorney, according to his office, and brings years of legal and business experience in the city to the office.

In a statement, Chiu said he was "deeply grateful and humbled by the opportunity to serve as San Francisco's next city attorney."

"Throughout my legal career and in public service, I have seen the real impact of the law on everyday people," Chiu said. "It will be an honor to be able to use the power of the law to fight for justice on behalf of the people of San Francisco in this new capacity. The San Francisco City Attorney's Office has been on the forefront of some of the most important legal battles in the country, and I look forward to continuing that legacy."

Chiu's departure will surely ignite Democratic competition to fill the vacant chair of the Housing and Community Development Committee. Given the state's supply shortage and worsening affordability crisis, the committee chair is a high-profile and critical leader in the Legislature charged with steering meaningful legislation to the governor's desk.

It's unclear who will replace Chiu in this position. Democrats, who have a majority in the Legislature, currently serving on the committee include Assembly members Jesse Gabriel, Ash Kalra, Brian Maienschein, Sharon Quirk-Silva and Buffy Wicks.

In a post on Twitter, Assembly Speaker Anthony Rendon, D-Lakewood, congratulated Chiu.

"The Assembly's loss is San Francisco's gain," Rendon wrote. "David is an outstanding Member and representative, especially on the issue of housing. I know he will bring the same strength and dedication to his new role."

Breed in a written statement said Chiu "has spent his career working to improve the lives of San Franciscans."

“He has the vision, integrity, and experience, and I know he will continue to fight for the people in our community who are most in need. I know that he will bring that same approach to this new role and I am confident that the City Attorney’s Office will be in good hands for years to come,” she said.

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